

FORM NO. HCJDC/A38
JUDGMENT SHEET

**IN THE LAHORE HIGH COURT, LAHORE,
JUDICIAL DEPARTMENT
JUDGMENT**

I.C.A. No.4266 of 2022

Asma Parveen

Versus

The Secretary School Education etc

Date of Hearing : 25.01.2022

Appellant by : Mr. Riaz Ahmad Tahir, Advocate.

MASUD ABID NAQVI.J:- Through this Intra Court Appeal, the appellant has challenged the validity of the order dated 17.11.2021 passed by the learned Single Judge-in-chamber whereby writ petition filed by the appellant was dismissed.

2. We have taken into consideration the arguments advanced by learned counsel for the appellant and perused the record.

3. Perusal of record reveals that appellant was a contract employee as SESE (Science) Govt. Girls Elementary School but her contract was terminated on the basis of poor performance/un-satisfactory report of Headmistress vide order dated 16.06.2017. Although, the appellant's constitutional petition was dismissed but learned Division Bench accepted ICA No.105593/2017 with these observations;

“7. In view of the above discussion, instant petition is allowed in the terms that impugned order dated 19.07.2017, passed by learned Single bench of this Court, is hereby set-

aside, resultantly, termination order dated 16.06.2017, passed by respondent No.2, is declared to be illegal and without lawful authority. Office is directed to transmit copies of this order and writ petition as well as instant appeal, alongwith annexures, to respondent No.2, with a direction to proceed in the matter afresh, strictly in accordance with law, keeping in view the observations made hereinabove. This exercise shall be accomplished preferably within a period of **thirty days** from the date of receipt of certified copy of this order. Compliance report shall be furnished to this Court through Deputy Registrar (Judicial).

In compliance with the direction of learned Division Bench, a regular inquiry officer was appointed who conducted regular detailed inquiry and sent her recommendations to the competent authority on 02.10.2018 as charge No.2 was partially proved against the appellant. Thereafter, competent authority/DEO(W-EE) imposed minor penalty of censure under Section 4(a)(I) of PEEDA Act, 2006 vide order dated 16.11.2018 after (i) receiving the reply from appellant and (ii) personal hearing, which was challenged by the petitioner by filing Writ Petition No.9820/2019 and the same was converted into appeal under Section 16 of the PEEDA Act on the desire of the appellant's counsel and was remitted to CEO Education with the direction to decide the same after providing proper hearing to all the concerned including the appellant. The appellate authority/CEO Education dismissed the appellant's appeal vide order dated 27.03.2019.

Although, the appellant/petitioner disclosed the facts partially in her writ petition but intentionally concealed certain facts especially

the decision of appellate authority/CEO Education or any other proceedings before any forum/court, thereafter. During the arguments before the learned Single Judge in Chamber, the learned AAG disclosed about the pendency of Writ Petition No. 21760/19 wherein the appellant not only challenged the order dated 27.03.2019, passed by the appellate authority/CEO Education in compliance to the order of learned Single Judge in Chamber in Writ Petition No.9820/2019 but also again challenged the order dated 16.11.2018, passed by the competent authority/DEO(W-EE). Conduct of the appellant in filing constitutional petition by concealing certain facts is a classic manifestation of an attempt to thwart the administration of justice and suppression and concealment of material facts with the object to mislead the Court which is an abuse of the process of the Court. The conduct of the present appellant in filing writ petition alongwith affidavit by concealing and suppressing facts is deplorable and reprehensible which can neither be ignored nor taken it lightly.

4. The Court is dependent on the averments made in the petition supported by an affidavit on the first date of hearing. It is a fundamental principle, rather a pre-requisite, that the person seeking equitable relief must approach the Court, by making full, candid, truthful, frank and open disclosure of all the relevant facts, particularly the facts having a bearing on the merits of the case. In The Black's Law Dictionary, suppression of facts is defined as, "*preventing the facts from being seen, heard or known*" which inevitably leads to suppression of the truth, a kind of fraud. The jurisdiction of this Court

under Article 199 of the Constitution is discretionary and equitable in character. The appellant seeking to invoke its extra ordinary jurisdiction ought to come with clean hands because “he who seeks equity must come to the Court with clean hands”. Where the petitioner has not stated relevant facts correctly or candidly rather has suppressed, misstated or misrepresented the material facts, this by itself is sufficient for an outright dismissal of instant petition without going into merits. These principles are well settled, inter-alia, elucidated in “*Abdur Rashid vs Pakistan and others*”, 1969 SCMR 141, “*Nawab Syed Raunaq Ali etc vs Chief Syed Settlement Commissioner and others*”, PLD 1973 SC 236, “*Wali Muhammad and others vs Sakhi Muhammad and others*”, PLD 1974 SC 106, “*Rana Muhammad Arshad vs Additional Commissioner (Revenue), Multan Division and others*”, 1998 SCMR 1462, “*Thakur Dan Singh Bist, and others vs Registrar of Companies*”, AIR 1960 Allahabad 160, “*Daulat Singh and others vs The Deputy Commissioner, Karnal and others*”, AIR 1972 Punjab & Haryana 28 and “*Corporation of Calcutta vs Narayan Chandra Das*”, AIR 1957 Calcutta 447.

5. Suppression or concealment of relevant facts has been rightly termed as a “jugglery which has no place in the equitable and prerogative jurisdiction”. The writ petition, without any doubt, is based on deliberate suppression and concealment of facts. The conduct of the appellant has severe consequences for administration of justice. It subverts the course of justice for other bonafide litigants by clogging the judicial system and gives rise to mistrust of the legal system. It

causes delay for others by wasting public time and loss to the exchequer. It is an abuse of the process of the court and courts, therefore, have the duty to protect the process from being abused. This is in the nature of a fiduciary duty which the courts owe towards the public and bonafide litigants. Obstinate litigants causing abuse of the process of the court undermine the public confidence in the administration of justice and the courts. Being conscious of this onerous duty, court cannot show leniency when its process is abused, despite the fact that grace and magnanimity is its essential attributes. The appellant's conduct is obviously beyond recklessness, rather deliberate. The conduct can neither be condoned nor can be taken lightly. However, even after discussing the conduct of the petitioner/appellant in filing writ petition with certain concealment of facts, learned Single Judge in Chamber has taken a lenient view by not imposing fine on the petitioner/appellant.

6. The appellant was appointed purely on contract basis for the period initially for five years, extendable for further five years on the basis of good performance on 24.04.2014 and on the basis of recommendation of Scrutiny Committee, the competent authority/DEO passed the impugned order dated 24.04.2019 by simply relieving the appellant from the duty after the expiry of the contract. It is important to note that the employment of appellant was contractual in nature and being a contractual employee, the appellant has no automatic right to continue her job unless same has specifically been provided in a law. Being a contractual employee,

the relationship between the appellant and respondent/Government of Punjab will be governed by the principle of master and servant and the appellant has to serve till the satisfaction of her master. Hence, in view of established principle of law that a contract employee is debarred from approaching this Court in its constitutional jurisdiction for re-instatement or extension of contract and only remedy available to a contract employee is to file suit for damages alleging any breach of contract or failure to extend the contract. The Courts cannot force the employer to reinstate or extend the contract of employee, even in case of any wrongful termination. Reliance is placed on case reported as “*M/o IPC through Secretary and others v. Arbab Altaf Hussain and others*” (2014 SCMR 1573). Relevant portion of the judgment is reproduced herein below:-

“Secondly, the employment(s) of the said respondents admittedly was contractual in nature and their services were terminated after due notice as per their contractual terms and conditions of service. And even on this account the writ petitions were incompetent and had to fail,-----So the writ petitions filed by all other respondents, as mentioned earlier, were liable to be dismissed on these scores.”

Reference may also be made to the case titled as “*Federation of Pakistan through Secretary Law, Justice and Parliamentary Affairs v. Muhammad Azam Chattha*” (2013 SCMR 120). Relevant portion of the judgment is reproduced herein below:-

“In addition to it, it is a cardinal principle of law that a contract employee instead of pressing for his reinstatement to serve for the leftover period can at best claim damages to the extent of unexpired period of his service. 15. In Halsbury's Laws of England (3rd Ed.) Vol. 11, p.244 Para 414, it is stated that the measure of damages for wrongful dismissal, is the loss thereby

incurred, and that would, subject to the duty of the plaintiff to mitigate, normally be the wages due and payable for the agreed period of service. In the case of Federation of Pakistan v. Ali Ahmed Qureshi (2001 SCMR 1733) it has been held that in view of the doctrine of master and servant, the contract of service cannot be specifically enforced, however, in the event of arbitrary dismissal or unwarranted termination of employment, an employee is entitled to sue for damages equal to wages, allowances and other benefits, which would have been otherwise due and payable under the contract of employment. In the case of Pakistan Red Crescent Society and another v. Syed Nazir Gillani (PLD 2005 SC 806) it has been held that an employee of a corporation, in the absence of violation of law or any statutory rule, cannot press into service the Constitutional or civil jurisdiction for seeking relief of reinstatement in service and can only claim damages against his wrongful dismissal or termination. While holding so, reference has been made to the cases of Mrs. M.N. Arshad v. Mrs. Naeema Khan (PLD 1990 SC 612), Messrs Malik and Haq v. Muhammad Shamsul Islam Chowdhury (PLD 1961 SC 531), Zainul Abidin v. Multan Central Cooperative Bank Limited (PLD 1966 SC 445), Chairman, East Pakistan Industrial Development Corporation v. Rustom Ali (PLD 1966 SC 848), Abdul Salam Mehta v. Chairman, WAPDA (1970 SCMR 40), Lt. Col. Shujauddin Ahmad v. Oil and Gas Development Corporation (1971 SCMR 566), R.T.A. Janjua v. National Shipping Corporation (PLD 1974 SC 146), Principal, Cadet College, Kohat v. Muhammad Shoab Qureshi (PLD 1984 SC 1791), Anwar Hussain v. Agricultural Development Bank of Pakistan (PLD 1984 SC 194), Syed Akbar Ali Bokhari v. State Bank of Pakistan (PLD 1977 Lah. 234), Muhammad Yusuf Shah v. Pakistan International Airlines Corporation (PLD 1981 SC 224) and Evacuee Trust Property Board v. Muhammad Nawaz (1983 SCMR 1275). The same principle has been reiterated in the case of Brig. (R.) Sakhi Marjan v. Managing Director PEPCO (2009 SCMR 708). Reference may also be made to the case of S. S. Shetty v. Bharat Nidhi, Ltd. (AIR 1958 SC 12) wherein the Indian Supreme Court on the same issue has held as under:-

"The position as it obtains in the ordinary law of master and servant is quite clear. The master who wrongfully dismisses his servant is bound to pay him such damages as will compensate him for the wrong that he has sustained. "They are to be assessed by reference to the amount earned in the service wrongfully terminated and the time likely to elapse before the servant obtains another post for which he is fitted. If the contract expressly provides that it is terminable upon, e.g., a month's notice, the damages will ordinarily be a month's wages. ... No compensation can be claimed in respect of the injury done to the servant's feeling by the circumstances of his dismissal, nor in respect of extra difficulty of finding work resulting from those circumstances. A servant who has been wrongfully dismissed must use diligence to seek another employment, and the fact that he has been offered a suitable post may be taken into account in assessing the damages." [Chitty on Contracts, 21st Ed., Vol. (2), p.559 para. 1040].

If the contract of employment is for a specific term, the servant would in that event be entitled to damages the amount of which would be measured prima facie and subject to the rule of mitigation in the salary of which the master had deprived him. [Vide Collier v. Sunday Referee Publishing Co., Ltd. (1940) 4 All E.R. 237]. The servant would then be entitled to the whole of the salary, benefits, etc., which he would have earned had he continued in the employ of the master for the full term of the contract, subject of course to mitigation of damages by way of seeking alternative employment. Such damages would be recoverable by the servant for his wrongful dismissal by the master only on the basis of the master having committed a breach of the contract of employment."

The *ratio decidendi* laid down by the Hon'ble Apex Court in the judgments mentioned *supra* has further been ratified in judgments reported as Government of Khyber Pakhtunkhwa Workers Welfare Board through Chairman v. Raheel Ali Gohar and others (2021 PLC (CS) 125), Miss Naureen Naz Butt v. Pakistan International Airlines

through Chairman, PIA and others (2020 SCMR 1625), Qazi Munir Ahmed v. Rawalpindi Medical College and Allied Hospital through Principal and others (2019 SCMR 648).

7. Even otherwise, in view of the availability of an alternate efficacious remedy/*claim of damages/compensation, if any*, to the appellant/a litigant under the law, constitutional jurisdiction of this Court is also barred. Reliance can be placed on Indus Trading and Contracting Company v. Collector of Customs (Preventive) Karachi and others (2016 SCMR 842), Dr. Sher Afgan Khan Niazi v. Ali S. Habib and others (2011 SCMR 1813) and Muhammad Abbasi v. S.H.O. Bhara Kahu and 7 others (PLD 2010 SC 969).

8. In view of the foregoing discussion, we are of the considered opinion that the learned Single Judge in Chamber has exhaustively dealt with the matter and rightly dismissed the writ petition. The appellant has miserably failed to substantiate her case by giving valid grounds for setting aside the impugned order. Consequently, finding no merit in this appeal, the same is **dismissed in limine.**

(SHAHID BILAL HASSAN)
JUDGE

(MASUD ABID NAQVI)
JUDGE

Approved for reporting.

JUDGE

JUDGE